

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 3, 2026 TIME: 8:30 A.M.

This is a petition seeking a judicial determination pursuant to Penal Code section 18250 regarding disposition of weapons following defendant Miguel Tapia's arrest for domestic battery. Plaintiff, City of Santa Cruz, seeks to seal its memorandum of points and authorities supporting its petition for an order for forfeiture of defendant's firearms, ammunition, and related accessories, as well as the declarations of two police officers. The request is based upon the inclusion of confidential victim and witness information in those pleadings.

The Court finds the request satisfies the provisions of Cal. Rule of Court, rule 2.550(d): there exists an overriding interest that overcomes the right of public access to the record; the overriding interest supports sealing the record; a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; the proposed sealing is narrowly tailored; and no less restrictive means exist to achieve the overriding interest.

No. 25CV04045

WELLS FARGO, N.A. v. DIAZ

(UNOPPOSED) PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT

The unopposed motion is granted. Judgment will be entered in favor of plaintiff.

I. BACKGROUND

This is a limited jurisdiction collection matter filed by plaintiff Wells Fargo, N.A. against defendant Juan C. Diaz seeking \$17,234.77 for an unpaid credit card debt. There are two causes of action for breach of contract. Defendant, who is represented by counsel, filed an answer and affirmative defenses. Despite proper service, defendant did not oppose the motion.

II. UNDISPUTED MATERIAL FACTS

Defendant applied for and was issued a Wells Fargo credit card ("Subject Account") ending in 4924. (Plaintiff's Separate Statement of Undisputed Material Facts ("UF"), No. 1, 15.) Plaintiff sent defendant the credit card along with the written Customer Agreement associated with the credit card. (UF 2, 16.) Defendant accepted the terms of the written agreement when they used the Wells Fargo Credit Card. (UF 3, 17.) Pursuant to the terms of the Customer Agreement associated with the card, plaintiff would extend credit to defendant whereby defendant could charge goods, services, or obtain cash advances on the credit line (UF 4, 18.) In exchange, defendant was to repay the principal amount lent plus applicable interest and finance charges. (UF 5, 19.)

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In accordance with the Customer Agreement, defendant used the account, and made payments, charges, and incurred a balance thereon. (UF 6, 20.) Plaintiff sent defendant monthly statements of the Subject Account each and every billing period. (UF 7, 21.) The statements of the account reflected all charges, payments, minimum payment due that billing period, and any fees and interest incurred for each billing period. (UF 8, 22.) There is no record of any unresolved disputes on the account. (UF 9, 23.) There is no record of any active lawsuits against Wells Fargo Bank, N.A. for unresolved disputes on this credit card account. (UF 10, 24.) Defendant's last payment on the Subject Account was on January 18, 2024. (UF 11, 25.) Thereafter, no further payments were made by the defendant, and therefore, pursuant to the terms of the Customer Agreement, defendant was in default. (UF 12, 26.) The balance due on defendant's Subject Account is \$17,234.77. (UF 13, 27.) As a result of defendant's unpaid balance, plaintiff has been damaged in the sum of \$17,234.77. (UF 14, 28.)

III. SUMMARY JUDGMENT LEGAL STANDARDS

In a summary judgment motion, the court must determine from the evidence presented that "there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law...." (Code Civ. Proc., § 437c, subd. (c).) In making this determination, the court may rely on "affidavits, declarations ... and matters of which judicial notice shall or may be taken." (Code Civ. Proc., § 437c, subd. (b).) The plaintiff "may not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(2).)

Defendants moving for summary judgment bear the burden of persuasion that one or more elements of the cause of action in question cannot be established or that there is a complete defense thereto. In general, a moving defendant must present evidence that, if uncontradicted, "would constitute a preponderance of evidence that an essential element of the plaintiff's case cannot be established...." (*Kids' Universe v. In2Labs* (2002) 95 Cal.App.4th 870, 879.) If defendant fails to meet this burden, its motion must be denied and plaintiff need not make any showing at all. Defendant can show that an essential element of plaintiff's claim cannot be established by presenting evidence (discovery responses, deposition testimony, etc.) that plaintiff does not possess *and* cannot reasonably obtain needed evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891; *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855, fn. 23.)

The moving party bears the initial burden of production to make a *prima facie* showing that there are no triable issues of material fact. If the moving party carries this burden, it causes a shift and the opposing party is then subject to its own burden of production to make a *prima facie* showing that a triable issue of material fact exists. (*Id.* at p. 850.) Each material fact must have a citation to supporting evidence. (Code Civ. Proc., § 437c, subd. (b)(1).) If a triable issue is raised

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as to any of the facts in the separate statement, the motion may be denied. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252.) Opposition declarations are to be liberally construed while the moving party's evidence is strictly scrutinized. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 768.)

IV. DISCUSSION

The Court finds the above facts are sufficient to satisfy the elements of plaintiff's claims. The burden therefore shifts to defendant to show that a triable issue of one or more material facts exists as to the causes of action or a defense thereto. Defendant has failed to meet this burden as he has not filed an opposition and raised any triable issue of disputed fact. Plaintiff is therefore entitled to judgment against defendant in the amount of \$17,234.77.

The Court will not be signing the proposed form of order electronically filed by plaintiff on April 28th. Per local rule, plaintiff is ordered to submit a proposed form of order which incorporates all of the text of this tentative decision, and, upon court approval, that order will be signed along with the proposed form of judgment previously submitted.